

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण/Bid Details                                                                                                |                                                                                                                                                                                                                                                                                                                                     |
|----------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                         | 14-07-2026 16:00:00                                                                                                                                                                                                                                                                                                                 |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                        | 14-07-2026 16:30:00                                                                                                                                                                                                                                                                                                                 |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                            | 180 (Days)                                                                                                                                                                                                                                                                                                                          |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                            | Gujarat                                                                                                                                                                                                                                                                                                                             |
| विभाग का नाम/Department Name                                                                                         | Panchayats And Rural Housing Department Gujarat                                                                                                                                                                                                                                                                                     |
| संगठन का नाम/Organisation Name                                                                                       | Surat District Panchayat                                                                                                                                                                                                                                                                                                            |
| कार्यालय का नाम/Office Name                                                                                          | Taluka Panchayat Bardoli                                                                                                                                                                                                                                                                                                            |
| शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal                                                | HOD Email id :tdo-bardoli@gujarat.gov.in<br>Buyer Email id: buycon422.sdp.gj@gembuyer.in                                                                                                                                                                                                                                            |
| कुल मात्रा/Total Quantity                                                                                            | 1                                                                                                                                                                                                                                                                                                                                   |
| वस्तु श्रेणी /Item Category                                                                                          | Reverse Osmosis based Water Treatment System above 50 LPH Capacity (V2) (Q2)                                                                                                                                                                                                                                                        |
| बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)       | 2 Lakh (s)                                                                                                                                                                                                                                                                                                                          |
| मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)                               | 10 Lakh (s)                                                                                                                                                                                                                                                                                                                         |
| उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service       | 1 Year (s)                                                                                                                                                                                                                                                                                                                          |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover | No                                                                                                                                                                                                                                                                                                                                  |
| वर्षों के अनुभव के लिए स्टार्टअप को छूट प्राप्त है / Startup Relaxation for Years Of Experience                      | Yes   Complete                                                                                                                                                                                                                                                                                                                      |
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                         | Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                        |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in) |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 2                                                                                                                                                                      |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 7                                                                                                                                                                      |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 1                                                                                                                                                                      |
| विगत प्रदर्शन /Past Performance                                                                                                                                                                                          | 20 %                                                                                                                                                                   |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | Yes                                                                                                                                                                    |
| रिवर्स नीलामी योग्यता नियम/RA Qualification Rule                                                                                                                                                                         | H1-Highest Priced Bid Elimination                                                                                                                                      |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Two Packet Bid                                                                                                                                                         |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 2 Days                                                                                                                                                                 |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)                                     | No                                                                                                                                                                     |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                            |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                     |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                     |

#### ईएमडी विवरण/EMD Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

#### ईपीबीजी विवरण /ePBG Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                           |    |
|-------------------------------------------|----|
| एमएसई खरीद वरीयता/MSE Purchase Preference | No |
|-------------------------------------------|----|

#### एमआईआई खरीद वरीयता / MII Purchase Preference

|                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| एमआईआई खरीद वरीयता / MII Purchase Preference                                                                                                                                                                                                                                                                                                                                              | Yes                                                                                         |
| मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$                                                                                                                                                                                                                      | 20                                                                                          |
| मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference                                                                                                                                                                                                                                                 | 50                                                                                          |
| सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time) | Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time) |

1. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
3. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
4. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
5. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which

no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

6. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

7. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 20% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

8. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

## **Reverse Osmosis Based Water Treatment System Above 50 LPH Capacity (V2) ( 1 pieces )**

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

### **तकनीकी विशिष्टियाँ /Technical Specifications**

[\\* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

| विवरण/Specification      | विशिष्टि का नाम /Specification Name                | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|--------------------------|----------------------------------------------------|-----------------------------------------------------------------|
| Generic                  | <b>Construction RO Frame</b>                       | SS304 or better Or higher                                       |
|                          | <b>Construction of Body / Encloser</b>             | SS304 or better Or higher                                       |
|                          | <b>Construction of Self Contained Water Cooler</b> | NA                                                              |
| Features and Performance | <b>Mounting type</b>                               | Freestanding                                                    |
|                          | <b>Filtration capacity (In LPH)</b>                | Above 1000 LPH and upto 1500 LPH                                |

| विवरण/Specification                               | विशिष्टि का नाम /Specification Name                                                                 | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                                                                         |
|---------------------------------------------------|-----------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|
|                                                   | <b>Feed Water TDS (ppm) at which the machine LPH and Guaranteed output water quality is ensured</b> | upto1500                                                                                                                                |
|                                                   | <b>Storage Water Tank (Inclusive in the scope of Supply)</b>                                        | No                                                                                                                                      |
|                                                   | <b>Storage Tank Material</b>                                                                        | NA                                                                                                                                      |
|                                                   | <b>Guaranteed output water quality</b>                                                              | As per IS 10500 or better                                                                                                               |
| Service, Warranty, Installation and Commissioning | <b>Comprehensive warranty for complete unit</b>                                                     | 1 year from the date of satisfactory commissioning of the machine                                                                       |
|                                                   | <b>Minimum Free Services during Comprehensive warranty / CMC / AMC for complete unit</b>            | 4 nos. per year                                                                                                                         |
|                                                   | <b>Installation and Commissioning inclusive in the scope of supply</b>                              | Yes                                                                                                                                     |
|                                                   | <b>Training and Demonstration</b>                                                                   | The installation and demonstration of the machine at the consignee place shall be carried out as part of installation and commissioning |

**परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                                                                  | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|---------------------------------------------------------|------------------------------------------------------------------------------|------------------|------------------------------|
| 1             | Shiroya Maheshkumar Savajibhai                          | 394601,taluka panchayat bardoli, opp. swaraj aashram, station road, bardoli. | 1                | 90                           |

**Special terms and conditions-Version:1 effective from 03-04-2025 for category Reverse Osmosis based Water Treatment System above 50 LPH Capacity (V2)**

**1. Standard Terms and Conditions for Reverse Osmosis based Water Treatment System / Machine above 50 LPH Capacity**

**Scope of standard installation and commissioning for Reverse Osmosis based Water Treatment System / Machine above 50 LPH Capacity**

**1. Sellers Responsibility:**

1. All the required tools and machinery as required for installation and commissioning of machine.
2. Suitable hardware including brackets / screws washers etc., for mounting and fitting of machine at the respective locations.

3. All the water connections / fittings piping shall be laid neatly, tidily and securely as per best industry practices.
4. They provide necessary piping and connections from inlet and outlet of the machine within 2~3 meters.
5. All electrical wiring / connection to ensure proper functioning of the machine.
6. All parts of the machine should be suitably earthed, and all electric wiring should be suitably insulated to avoid electric shock during usage.
7. During Service visits with a Comprehensive Warranty / CMC the following shall be applicable.
8. Changing of Pre-Filter during each visit free of cost.
9. Cleaning of the complete water purifications system along with the water tank (if applicable).
10. Changing of Complete Filters once a year free of cost which may include but not limited to Sand Filter, Sediment Filter, Carbon Filter, Mineral Filter, Micron Filter, Anti-Scaling, Alkaline Filter, Flushing Mechanism, Reject Water Control Mechanism, Mineralizer/Taste Enhancer Media, Activated Carbon Media, etc. (as applicable).
11. Seller shall ensure that the "Actual Filtration capacity (In LPH)" specified by them shall be in line with "Filtration capacity (In LPH)". In case any contradiction is observed the superior value out of two shall reveal.

## 2. Buyers Responsibility:

1. To provide all gate passes for the installation team to access the area where installation to be carried out.
2. To provide suitable location for installation of machine which having required and easy access during installation and post installation maintenance. Any civil work shall be responsible for buyer
3. To ensure inlet water supply within 2~3 meters of machine input and machine output.
4. To provide suitable power sockets within 1~2 meters of the machine.
5. To provide potable water of reasonable quality without having muddy appearance, solids and wastes etc. The input water is usually supplied from local municipalities or PHED supplies.
6. The Input water Head (pressure) shall be 0.3 kg (3-meter head).

## 3. Note to Sellers:

1. Seller may refer to GTC and ensure strict compliance of the uploaded/ offered product which shall be in line with their model having the claimed specifications in the catalogue or better.

2. Also, same model shall not be uploaded across catalogues with unreasonable/ contradictory offerings.

3. Sellers should note that while uploading the catalogue, all three images must be distinct.

1. **Image 1 - Should be Isometric View of the Complete Product**

2. **Image 2 - Front View of the Complete Product**

3. **Image 3 - LHS or RHS view of the Complete Product**

4. In case any discrepancy is observed in the offered/ uploaded products, OEM dashboard of the respective Brand may be removed, and account shall be suspended as per IM policy.

## 4. Note to Buyer:

1. For Procurement through BID/RA: - Buyers are advised to create bid with a specific value of Golden Parameter such as Mounting Type, Filtration capacity (In LPH), Maximum Feed Water TDS (ppm) at which the machine LPH and Guaranteed output water quality is ensured, Storage Tank Material, Storage Tank Capacity (In Liter), etc as applicable. Any bid created by the buyer without selecting specific LOV's or selecting Any Value in the above Golden Parameters will be treated as vague and is liable to be cancelled by competent authority at any point of time or if the above is resulting into limited competition or higher cost to the ex-chequer, the buyer will be solely responsible.
2. For Procurement through Direct / L1: - Buyers are advised to apply all filters and selections allowing all the values which are considered meeting or are better than their technical requirements. For example, Constructional Feature if the requirement is Complete Frame made of SS304 or better, buyer should select other superior values i.e. Complete Frame with enclosure made of SS304 or better, such selection will act as Complete Frame made of SS304 or better (in L1 buying). For any violation of the above if resulting into limited competition or higher cost to the ex-chequer, the Buyer shall be solely
3. Buyers should also refer to GTC Clause 4. xiii.(w). The ATC / additional specification if any added by the buyer shall not be contradictory to the GeM category specifications / technical parameters (TP). Bids with contradictory specifications and technical parameters will be treated as vague and is liable

to be cancelled by competent authority at any point of time or if the above is resulting into limited competition or higher cost to the ex-chequer, the buyer will be solely responsible.

4. Buyer/ consignee shall verify all the technical parameters and specifications including but limited to Filtration capacity (In LPH), Type of Machine and other related parameters of the supplied and installed machine as per contract before issuing
5. Buyers may consider EPBG for duration higher than machine warranty, which may be enched for inadequate warranty support.

## क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

### 1. **Generic**

**OPTION CLAUSE:** The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be  $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$ , subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

### 2. **Generic**

**Experience Criteria:** The Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for 1 year before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the year. In case of bunch bids, the primary product having highest value should meet this criterion.

### 3. **Generic**

**Bidder financial standing:** The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

### 4. **Generic**

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

### 5. **Generic**

**Manufacturer Authorization:** Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid

### 6. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

### 7. **Turnover**

**Bidder Turn Over Criteria:** The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a

certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

#### 8. **Service & Support**

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

#### 9. **Service & Support**

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

#### 10. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

#### 11. **Certificates**

To be eligible for award of contract, Bidder / OEM must possess following Certificates / Test Reports on the date of bid opening (to be uploaded with bid):

National accreditation board for testing and calibration laboratories valid certificate.

#### 12. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

TDO TALUKA PANCHAYAT BARDOLI  
payable at  
TDO TALUKA PANCHAYAT BARDOLI

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

#### 13. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. Bidder have to upload non-blacklisted declaration on latter pad.
2. Bidder and OEM turnover certificate should be issued by CA and provided with UDIN.
3. Bidder have upload the sem category past performance.
4. Bidders must submit the EMD (3% of bid price) 15000 /- with Account Payee Demand Draft in favour of TDO TALUKA PANCHAYAT BARDOLI, Bidder has to upload scanned copy/proof of the DD along with bid and has to ensure delivery of hard copy to the tdo taluka panchayat bardoli district surat with in 10 days of Bid Opening date. As per Gujarat Procurement Policy 2024
5. Successful Bidder must submit the Security deposit (5% of bid price) in the form of Account Payee Demand Draft. DD should be made in favour of TDO TALUKA PANCHAYAT BARDOLI After award of contract, Successful Bidder can upload scanned copy of the DD and has to ensure delivery of hard copy to the original DD to the TDO TALUKA PANCHAYAT BARDOLI with in 10 days of award of contract.

## अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**